

# Manish Malhotra vs The State Of Jharkhand on 12 January, 2023

**Author: Gautam Kumar Choudhary**

**Bench: Gautam Kumar Choudhary**

IN THE HIGH COURT OF JHARKHAND AT RANCHI  
Cr.M.P. No. 2051 of 2022

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|                              |       |                  |
|------------------------------|-------|------------------|
| Manish Malhotra              | ..... | Petitioner       |
| Versus                       |       |                  |
| 1. The State of Jharkhand    |       |                  |
| 2. Puja Kaur @ Puja Malhotra | ..... | Opposite Parties |

CORAM: HON'BLE MR. JUSTICE GAUTAM KUMAR CHOUDHARY For the Petitioner : Mr. Kumar Amit, Advocate For the State : Mr. Prabhu Dayal Agrawal, A.P.P. Order No.06 / Dated : 12.01.2023 Instant petition has been filed for quashing the entire criminal proceeding including order taking cognizance in C.P. Case No.2665 of 2021 for the offence registered under Sections 498A, 406, 307 of the Indian Penal Code and Sections 3 & 4 of Dowry Prohibition Act.

2. The petitioner is husband of complainant-Puja Kaur @ Puja Malhotra and as per complaint case, she was married to him on 15th July, 2021 and was subjected to cruelty in reference to unlawful demand. After enquiry, prima facie case was found and process was issued against this petitioner by the impugned order for the offence under Sections 498A of the I.P.C.

3. It is submitted by learned counsel on behalf of petitioner that the complainant was suffering from Epilepsy before solemnization of marriage and the marriage was solemnized suppressing this fact. She was treated by Md. Waqar Ahmad at City Medical Centre, Bank More, Dhanbad without the knowledge of this petitioner. Later his brother got the complainant treated at Pulse Hospital, Ranchi where she was diagnosed on the basis of MRI study and to be suffering from Cerebellar Atrophy. Against this background, Original Suit No.31 of 2022 was filed before Principal Judge, Family Court, Koderma for declaring the marriage to be void and annulling under Clause C of Sub-section 2 of Section 5 of and Sections 12(1)(b)(c) of the Hindu Marriage Act, 1955. The marriage has been dissolved by judgment and decree dated 5th July, 2022. It is also submitted that amicable settlement between both sides has been entered for settling of the complainant's dispute for which supplementary affidavit dated 03.12.2022 has been filed annexing the copy of Mediation Centre, Koderma. Under the term of settlement, it has been agreed that Complaint Case No.272 of 2022 will be compromised and all the litigation between both sides will be disposed of in terms of settlement.

In this case, notice had been earlier issued on opposite party No.2 and validly served which is apparent from office note dated 02.12.2022 but till date she has not entered into appearance.

Under the aforesaid facts and circumstance and considering the settlement between both sides, the criminal proceeding arising out of C.P. Case No.2665 of 2021 and the order taking cognizance, is quashed.

The criminal miscellaneous petition is allowed.

(Gautam Kumar Choudhary, J.) Anit